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File No.: EXP202310575
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RESOLUTION OF SANCTIONING PROCEDURE

From the procedure instructed by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On August 30, 2022, the Director of the Spanish Agency for Data Protection issued a resolution in the procedure for the exercise of rights of file number EXP202204016, followed against A.A.A. (hereinafter, the respondent).

In said resolution, it is stated that the complainant exercised their right of access to the personal data concerning them, without said request being duly attended to, issuing a resolution requiring the following:

“FIRST: TO ESTIMATE the complaint filed by B.B.B. and to urge A.A.A., with NIF ***NIF.1, to send to the complainant, within ten working days following the notification of this resolution, a certification addressing the exercised right of Access or a motivated denial indicating the reasons why the request cannot be attended to, in accordance with the provisions established in the body of this resolution. The actions taken as a consequence of this Resolution must be communicated to this Agency within the same period. Non-compliance with this resolution could result in the commission of the infringement considered in Article 72.1.m) of the LOPDGDD, which will be sanctioned, in accordance with Article 58.2 of the GDPR.”

SECOND: The resolution of the procedure for the exercise of rights was notified to the respondent, in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), by means of an announcement published in the Official State Gazette on September 28, 2022, after two unsuccessful attempts to deliver the postal notification due to absence in delivery, as stated in the acknowledgment of receipt in the file.

THIRD: On October 2, 2022, and with entry registration numbers ***REGISTRO.1 and ***REGISTRO.2, the complainant informed this Agency that the respondent had not complied with the resolution.

FOURTH: Three requests were sent to the respondent to submit, within five working days, a certification of compliance with the resolution referenced in the terms described therein and, within ten working days, to communicate to this Agency the actions taken. In these requests, a copy of the resolution of the procedure for the exercise of rights of file number EXP202204016 was attached.

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The first of these, registered for outgoing on October 11, 2022, and number ***REGISTRO.3, was sent to the address provided by the complainant. After an initial unsuccessful delivery attempt resulting in "Absent," it was returned to the sender by Correos on November 4, 2022, marked as "Unknown," as stated in the acknowledgment of receipt in the file.

The second of these, registered for outgoing on April 11, 2023, and number ***REGISTRO.4, after two unsuccessful attempts to deliver the postal notification at the respondent's tax address due to absence, was "Returned to Sender due to Excess (Not picked up at office)" on May 4, 2023, as stated in the acknowledgment of receipt in the file.

The third of these, registered for outgoing on May 8, 2023, and number ***REGISTRO.5, after two unsuccessful attempts to deliver the postal notification at the address where the respondent is registered due to absence, was "Returned to Sender due to Excess (Not picked up at office)" on June 1, 2023, as stated in the acknowledgment of receipt in the file.

FIFTH: On July 9, 2023, and with entry registration number ***REGISTRO.6, the complainant informed this Agency that the respondent continues to fail to comply with the resolution of the procedure for the

exercise of rights.

SIXTH: After the period of the initial resolution and the subsequent requests, the respondent has not submitted any response to this Agency that certifies that they have attended to the exercised right of access or that they have denied it motivatedly indicating the reasons why the request cannot be attended to, having not collected any of the notifications sent by this Agency to the various addresses known.

SEVENTH: Against the aforementioned resolution, no ordinary administrative appeal can be filed due to the expiration of the established deadlines for it. Furthermore, the interested party has not expressed their intention to file a contentious-administrative appeal, nor does this Agency have any record of such an appeal being filed or a request for precautionary suspension of the resolution.

EIGHTH: On September 12, 2023, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against the respondent for the alleged infringement of Article 58.2 of the GDPR, classified in Article 83.6 of the GDPR.

NINTH: The agreement to initiate the present sanctioning procedure was notified to the respondent, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated October 19, 2023, after two unsuccessful attempts at postal notification, as evidenced in the file.

TENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP and after the period granted for the submission of allegations, it has been confirmed that no allegations have been received from the respondent.

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Article 64.2.f) of the LPACAP - a provision of which the respondent was informed in the agreement to open the procedure - establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement about the responsibility attributed, it may be considered a proposal for resolution. In the present case, the initiation agreement of the sanctioning file determined the facts on which the accusation was based, the infringement of the GDPR attributed to the respondent, and the sanction that could be imposed. Therefore, taking into account that the respondent has not made any allegations regarding the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

In view of all that has been acted upon, the following facts are considered proven by the Spanish Agency for Data Protection in the present procedure,

PROVEN FACTS

FIRST: The resolution of the procedure for the exercise of rights and the requirements for compliance with it indicated in the first, second, and fourth antecedents were notified in accordance with the provisions of the LPACAP. This resolution became firm and enforceable due to the expiration of the deadlines provided for the filing of the appeals indicated therein.

SECOND: The respondent has not sent any response to this Agency that proves compliance with the resolution.

THIRD: The initiation agreement of the present sanctioning procedure was notified to the respondent, in accordance with the provisions of Article 44 of the LPACAP, by means of an announcement published in the Official State Gazette dated October 19, 2023, after two unsuccessful delivery attempts at the postal address.

FOURTH: The respondent has not submitted allegations to the initiation agreement of this sanctioning procedure.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU)

2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Obligation breached

In accordance with the evidence available, it is considered that the respondent has breached the resolution of the Spanish Agency for Data Protection.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement, attributable to the respondent, for violation of Article 58.2.d) of the GDPR, which states the following:

"2. Each supervisory authority shall have all of the following corrective powers:

(...)

d) to order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame;"

III

Classification and qualification of the infringement

This infringement is classified under Article 83.6 of the GDPR, which stipulates the following:

"Failure to comply with the resolutions of the supervisory authority pursuant to Article 58, paragraph 2, shall be subject to the penalties set out in paragraph 2 of this Article, with administrative fines of up to 20,000,000 EUR or, in the case of an undertaking, an amount equivalent to 4% of the total annual global turnover of the preceding financial year, whichever is higher."

For the purposes of the limitation period for infringements, the infringement attributed is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which classifies the following conduct as very serious:

"m) Failure to comply with the resolutions issued by the competent data protection authority in the exercise of the powers conferred by Article 58.2 of Regulation (EU) 2016/679."

IV

Imposed sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 of the GDPR.

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It is noted that no mitigating or aggravating circumstances apply.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.2 of the GDPR as stipulated in Article 83.6 of the GDPR. The sanction to be imposed is an administrative fine in the amount of 400.00 euros.

V

Adoption of Measures

This Agency agrees to impose on the responsible party the adoption of appropriate measures to align its actions with the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, which states that each supervisory authority may "order

the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified time frame...”.

It is warned that failure to comply with the order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Article 83.6, and such conduct may lead to the initiation of further administrative sanctioning proceedings.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO IMPOSE on A.A.A., with NIF ***NIF.1, for an infringement of Article 58.2 of the GDPR, classified under Article 83.6 of the GDPR, a fine of 400.00 euros (FOUR HUNDRED euros).

SECOND: TO ORDER A.A.A., with NIF ***NIF.1, to submit within ten working days following the notification of this resolution a certification to the complainant addressing the exercised right of access or a reasoned denial indicating the reasons why the request cannot be fulfilled, in accordance with the provisions established in the resolution of the rights exercise procedure of file number EXP202204016. Furthermore, the actions taken must be communicated to this Agency within the same timeframe.

THIRD: TO NOTIFY this resolution to A.A.A..

FOURTH: This resolution will be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has elapsed without the interested party having exercised this right. The sanctioned party is warned that they must fulfill the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of 17 of

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December, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account no.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, it will proceed to its collection in the executive period.

Upon receiving the notification and once it is executive, if the date of executive status falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next business day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next business day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Administrative Court of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative procedure may be provisionally suspended if the interested party expresses their intention to file an administrative contentious appeal. If this is the case, the interested

party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of the aforementioned Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the administrative contentious appeal. If the Agency does not have knowledge of the filing of the administrative contentious appeal within two months from the day following the notification of this resolution, it would consider the provisional suspension to be concluded.

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Mar España Martí

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